

**SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, PEOPLE,
PLACES, IDENTIFIERS, AND EVENTS — NOT A REAL FILING
COUNTERFACTUAL — NEVER FILED OR ENTERED — DOES NOT
ALTER THE ACTUAL DISTRICT RECORD**

Counterfactual Submission-on-Briefs Order

United States Court of Appeals for the Fourth Circuit Blue Ember Biologics, LLC v. Granite Heron Logistics, Inc. No. SYN-CA4-26-CV-4105-CF-NEVER-OCCURRED Entered May 6, 2026

The clerk has presented the completed counterfactual briefing to Composite Jurists March, Rowan, and Slate. The panel unanimously concludes that the facts and legal contentions are adequately set out in the written materials and that oral argument would not materially assist decision. The appeal is submitted on the briefs as of May 6, 2026.

The Court has received Blue Ember’s opening brief and joint appendix materials filed March 9, Granite Heron’s response filed April 8, and Blue Ember’s reply filed April 20. This order records completion and submission only. It expresses no view about preservation, sufficiency, mitigation amount, judgment, or any conditional new-trial issue.

The panel will evaluate the February 2 express-preservation premise as a strictly isolated variation. No statement in this administrative order changes the causation-only text of the actual Rule 50(a) motions, supplements a trial transcript, or treats a hypothetical cure exchange as historical fact.

All later decisional activity must use the never-occurred docket shown above and retain both warnings. The clerk shall maintain segregation from every actual appellate path and shall not calendar oral argument unless the panel later enters a separate order explaining why written presentation has become inadequate.

Administrative direction and notice

The clerk shall circulate the briefs, certified synthetic district record, and four-page variation order to the assigned panel. The circulation package shall preserve source order and shall identify the variation separately so that assumed preservation cannot be mistaken for content appearing in the actual district motions or transcripts.

The parties need not file additional merits papers without leave. Any request concerning rehearing or mandate must await an entered judgment and comply with the dates and branch-specific procedures then applicable. This submission order does not begin a rehearing period, alter a mandate date, or resolve a potential stay request.

Electronic notice shall issue to Maya Holt and Jonas Bell for Blue Ember and to Eli Mercer and Tara Webb for Granite Heron. Receipt is an administrative event within the training docket only. It does not constitute service in a real proceeding and carries no consequence outside this counterfactual record.

The order is entered for the panel by the clerk on May 6, 2026. The synthetic docket will remain marked for decision on the briefs. No inference may be drawn from the absence of argument about the identity of a prevailing party, the content of an opinion, or the form of a later judgment.